

FEDERAL MARITIME COMMISSION

PETITION OF DIRECT CHASSISLINK,
INC., FLEXI-VAN LEASING, INC., &
TRAC INTERMODAL FOR AN ORDER
TO SHOW CAUSE

Petition No. P2-16

Served: June 1, 2017

BY THE COMMISSION: Michael A. KHOURI, *Acting Chairman*; Rebecca F. DYE, William P. DOYLE, and Daniel B. MAFFEI, *Commissioners*.

ORDER DENYING PETITION

On August 9, 2016, Direct ChassisLink, Inc., Flexi-Van Leasing, Inc., and TRAC Intermodal (Petitioners) filed a petition under 46 C.F.R. § 502.76¹ requesting that the Commission order the West Coast MTO Agreement and certain of its members (collectively, WCMTOA) to show cause why the publication of a Chassis Services Fee in WCMTOA Marine Terminal Operator Schedule No. 1 for the Ports of Los Angeles and Long Beach does not violate the Shipping Act of 1984 and Commission regulations. WCMTOA subsequently removed the Chassis Services Fee from the terminal schedule before the fee went into effect. WCMTOA and the International Longshore and Warehouse Union then filed comments urging the Commission to deny the Petition as moot.

¹ Effective April 3, 2017, § 502.76 was redesignated as § 502.94. See 81 Fed. Reg. 93831, 93836 (Dec. 22, 2016); 82 Fed. Reg. 8903 (Feb. 1, 2017) (delaying the effective date of the December 2016 final rule until April 3, 2017).

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The Commission agrees with the commenters that it would be a waste of the Commission's, Petitioners', and WCMTOA's resources to issue an order to show cause about a fee that was withdrawn before it was implemented. The Commission therefore denies the Petition as moot. If similar issues arise in the future, Petitioners may seek appropriate relief at that time.²

Accordingly, **IT IS ORDERED** that Petition No. P2-16 is denied without prejudice.

Rachel E. Dickon
Assistant Secretary

² For instance, Petitioners could file a complaint under 46 C.F.R. § 502.62. An order to show cause, however, might not be an appropriate procedural vehicle. As the Commission recently explained, orders to show cause under 46 C.F.R. § 502.91 (formerly § 502.73) are generally reserved for situations involving solely legal issues. They are inappropriate when disputes over material facts are likely to be involved in the disposition of the matter. *Revocation of Ocean Transport. Intermediary License No. 017843 – Washington Movers, Inc.*, 34 S.R.R. 27, 32-33 (FMC 2016).